

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/29/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0007954

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

PLAINTIFFS: JPMORGAN CHASE
BANK, N.A.

vs.

DEFENDANT: RICHARD J. FREITAS

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendant Richard Freitas filed a motion to compel arbitration and to stay the proceedings in this Court. The motion was served on Plaintiff and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

In light of the non-opposition, the motion is granted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/29/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008083

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

PLAINTIFF: SAN DOMENICO SCHOOL,
A CALIFORNIA CORPORATION

vs.

DEFENDANT: ANNA WANG

NATURE OF PROCEEDINGS: DEMURRER

RULING

Plaintiff/Cross-Defendant San Domenico School's demurrer to the First Cause of Action is sustained without leave to amend. The demurrer to the Third, Fifth, Sixth, and Seventh Causes of Action is sustained with leave to amend. The demurrer to the Second and Fourth Causes of Action is overruled.

Procedural Background

Plaintiff/Cross-Defendant San Domenico School ("San Domenico") filed its Complaint against Defendant/Cross-Complainant Anna Wang aka Jianghong Wang ("Ms. Wang") on November 4, 2025, alleging a single cause of action for breach of contract. San Domenico alleges that Ms. Wang is obligated under the parties' Enrollment Contract to pay a full year's tuition and fees for son Daniel because she did not provide written cancellation of his enrollment by May 1, 2025. San Domenico alleges that Ms. Wang owes \$76,096.12, plus a \$15 late fee.

Ms. Wang filed a Cross-Complaint on January 23, 2026, alleging that San Domenico's refusal to refund her \$17,994.94 deposit for that school year violates California Code of Regulation 18805 and that San Domenico's refusal to release Daniel's grades violates the California Code of Regulations, Title 5, Section 438(c). Ms. Wang asserts causes of action for violation of Sections 438(c) and 18805, unjust enrichment, breach of the covenant of good faith and fair dealing, violation of Business & Professions Code Section 17200, conversion, breach of contract, and intentional infliction of emotional distress.

San Domenico demurs to all seven causes of action in the Cross-Complaint.

Procedural Deficiency